

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1464

By: West (Tammy)

AS INTRODUCED

An Act relating to cities and towns; amending 11 O.S. 2021, Section 8-114, which relates to required training for newly elected or appointed municipal officers; modifying training; requiring eight cumulative training hours; clarifying instructor or organization must be certified; modifying subjects covered; providing procedures for failure to comply; clarifying presiding officer; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 11 O.S. 2021, Section 8-114, is amended to read as follows:

Section 8-114. A. Each person elected or appointed for the first time as an officer of a municipality as defined by paragraph 6 of Section 1-102 of this title, shall be required within one (1) year after taking the oath of office to attend ~~an institute~~ cumulative training totaling eight (8) hours for municipal officials. The ~~Institute~~ training shall be conducted ~~at all times~~ in-person or virtually, in cooperation with the Oklahoma Department

1 of Career and Technology Education, by ~~or under the supervision of a~~
2 ~~statewide organization that is exempt from taxation under federal~~
3 ~~law and designated pursuant to the provisions of the Internal~~
4 ~~Revenue Code, 26 U.S.C., Section 170(a).~~ The statewide organization
5 shall demonstrate to the Oklahoma Department of Career and
6 Technology Education that it has represented municipalities, had
7 statutory functions and conducted training programs for
8 municipalities for at least fifteen (15) years prior to November 1,
9 2005. It shall further demonstrate that its continuous official
10 purpose is to promote the general welfare of cities and towns, to
11 foster or conduct schools, short courses and other training
12 sessions, to provide technical assistance and consultive services
13 and other aids for the improvement and increased efficiency of city
14 and town government, and to serve as the representative of cities
15 and towns in carrying out the duties and prerogatives conferred on
16 it by state law an instructor or organization who has been certified
17 by the Oklahoma Department of Career and Technology Education.

18 B. The ~~Institute~~ training shall consist of eight (8) cumulative
19 hours of instruction. ~~A certificate~~ Certificates of completion
20 shall be awarded to those persons who attend and successfully
21 complete the ~~Institute~~ training and a list of those persons shall be
22 filed with the Oklahoma Department of Career and Technology
23 Education.

1 C. The curriculum for the ~~Institute~~ training shall include, but
2 not be limited to: municipal budget requirements, the Oklahoma Open
3 Meeting Act, the Oklahoma Open Records Act, ethics, procedures for
4 conducting meetings, conflict of interest, ~~and~~ purchasing
5 procedures, municipal election procedure, and forms of municipal
6 government.

7 ~~D. The Institute shall be held at a minimum of six regional~~
8 ~~locations in the state. Every effort shall be made by the Institute~~
9 ~~to accommodate training through long-distance learning.~~

10 ~~E.~~ A person elected or appointed to a municipal office who
11 fails to satisfy the education requirements of this section shall
12 cease to hold the office commencing at the next scheduled meeting of
13 the governing body following the first-year anniversary of the
14 person's taking the oath of office. If the official fails to
15 complete the training outline in this act, they may not be
16 reappointed to the position or other position(s) within the local
17 government until they have completed the required training.

18 ~~F~~ E. At the time of filing, the designated statewide
19 organization shall provide the necessary information to the
20 candidate of the option for attendance at the ~~Institute~~ training as
21 provided for in this section. In the case of officials nominated
22 and elected for municipal offices at town meetings, the presiding
23 officer of the town meeting shall notify the candidate of the
24

1 option. By definition, the presiding officer is the senior most
2 member of the council or board of trustees.

3 SECTION 2. This act shall become effective November 1, 2025.

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